

lief where the right of unravelling the transaction has been neglected for a period of twenty years (i).

34. **Executor or administrator of a trustee.** — The preceding powers belong to executors and administrators for the purpose of administration of the testator's or intestate's estates. But these powers cannot be assumed to exist where property, though legally vested in an executor or administrator, is not *available for the ordinary purposes of administration. Thus the *executor or administrator* of a surviving *trustee* stands on no higher ground than an ordinary trustee, and cannot therefore pass a good title to the purchaser, unless it be warranted by the terms of the trust.

SECTION III.

DISABILITY OF TRUSTEES FOR SALE TO BECOME PURCHASERS OF THE TRUST PROPERTY.

We now come to the subject of *purchases by trustees* of the property vested in them upon trust.¹

Under this head it will be proper to consider, *First*, The extent and operation of the rule, that a trustee shall not purchase the trust estate; *Secondly*, The species of relief

(i) *Andrew v. Wrigley*, 4 B. C. C. and see *M'Leod v. Drummond*, 14 125; *Bonney v. Ridgard*, 1 Cox, 145; Ves. 353; reversed 17 Ves. 152, see *Mead v. Orrery*, 3 Atk. 235, see 243; 171.

¹ *Trustee purchasing.* — A trustee who is selling trust property may not purchase at his own sale for his own benefit, and this applies generally to any one holding any fiduciary relation; *Blauvelt v. Ackerman*, 20 N. J. Eq. 141; *Dyer v. Shurtleff*, 112 Mass. 165; *Wistar's App.* 54 Pa. St. 60; *European R. R. Co. v. Poor*, 59 Me. 277; *Prewett v. Coopwood*, 30 Miss. 369; *Gass v. Mason*, 4 Sneed, 497; *Powell v. Cobb*, 3 Jones Eq. 456; *Taylor v. Taylor*, 8 How. 183.

This applies generally to all sales, contracts and negotiations between cestui que trust and trustee; *Pairo v. Vickery*, 37 Md. 467; *Wright v. Campbell*, 27 Ark. 637; *Boynton v. Brastow*, 53 Me. 362; *Farnam v. Brooks*, 9 Pick. 212; *Staats v. Bergen*, 2 C. E. Green, 554.

Either the trustee purchasing will become a constructive trustee or the sale will be void, at the option of the cestui que trust, unless he can show it to be fair and favorable to the cestui que trust; *Shelton v. Homer*, 5 Met. 462; *Johnson v. Blackman*, 11 Conn. 343; *Freeman v. Harwood*, 49 Me. 195; *Child v. Brace*, 4 Paige, 309; *Michoud v. Girod*, 4 How. 503; *Cram v. Mitchell*, 1 Sandf. Ch. 251.